

25NNCV08623 25NNCV08623

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-21

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Case Number: 25NNCV08623 Hearing Date: August 21, 2026 Dept: D

TENTATIVE RULING

Calendar: 4

Date: August 21, 2026

Case No: 25NNCV08623 Trial Date: Not yet set

Case Name: Aghajanyan v. Galstyan, et al.

DEMURRER

[CCP § 430.30]

Moving Party: Defendant, Zaven Galstyan

Responding Party: Plaintiff, Tigran Aghajanyan [Unopposed]

RELIEF REQUESTED:

Sustain demurrer to the Complaint

CAUSES OF ACTION: from Form Complaint

1) Motor Vehicle

SUMMARY OF FACTS:

This action arises from an alleged motor vehicle accident occurring on December 4, 2023 near Kenwood and Harvard Street in Glendale, CA 91205 between Tigran Aghajanyan ("Plaintiff") and Zaven Galstyan ("Defendant"). The Complaint alleges that Defendant negligently operated a motor vehicle, causing injury and damages to Plaintiff.

ANALYSIS:

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (CCP, § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

In ruling on a demurrer, the court "assumes the truth of all well-pleaded facts, as well as those that are judicially noticeable, but not contentions, deductions or conclusions of fact or law." (*Van de Kamps Coalition v. Board of Trustees of Los Angeles Community College Dist.* (2012) 206 Cal. App. 4th 1036, 1045.)

Defendant demurs to the Complaint on the ground that he is the plaintiff in another action pending between the same parties here and arising from the same incident. Defendant filed an action against Plaintiff on September 20, 2024, in LASC Case No. 24NNCV04464. (Demurrer, p. 4:19-23.) Defendant asserts that "the issues alleged in the Complaint merely swap those pled in the pending action." (Demurrer, p. 4:19-23.) Defendant argues that this action is thus barred because Plaintiff failed to file a cross-complaint in that earlier action. (Demurrer, p. 5:6-7.)

A demurrer lies where "[t]here is another action pending between the same parties on the same cause of action." (CCP, § 430.10 subd. (c).) Furthermore, "if a party against whom a complaint has been filed and served fails to allege in a cross-complaint any related cause of action which (at the time of serving his answer to the complaint) he has against the plaintiff, such party may not thereafter in any other action assert against the plaintiff the related cause of action not pleaded." (CCP, § 426.30.) "Thus, a party cannot by negligence or design withhold issues and litigate them in successive actions; he may not split his demands or defenses; he may not submit his case in piecemeal fashion." (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 959.) A compulsory cross-claim is one that "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in his complaint." (*Id.* at p. 960.)

Assuming Plaintiff's motor vehicle cause of action arises from the same facts and transactions as the claims in the prior action, Plaintiff was required to assert these claims in a cross-complaint in the prior action. However, Defendant has not provided the Court with a copy of the complaint in the prior action, submitted a request for judicial notice, or described the allegations in the prior action with any particularity. Accordingly, the Court is unable to definitively determine that Plaintiff's claims here should have been asserted as a compulsory cross-claim in LASC Case No. 24NNCV04464.

Thus, the demurrer is **OVERRULED**, without prejudice to Defendant refiling the demurrer with a sufficient showing, such as through a request for judicial notice of the complaint in the prior action, that the claims asserted here arise from the same facts and transactions as those alleged in the previously filed action.

RULING:

Defendant Zaven Galstyan's Demurrer is **OVERRULED**, without prejudice

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE

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